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California Democrats just showed why they're failing to balance public safety and social justice

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On Friday, Gov. Gavin Newsom announced that San Quentin, California's most notorious prison and home to the country's largest Death Row, will be transformed into a Scandinavian-style rehabilitation and education center to help prepare inmates to return to society.

The move was California's latest to distance itself from its failed legacy of mass incarceration. In recent years, lawmakers have greenlit — and voters have upheld — measures to reduce criminal sentences, slash mandatory enhancements, expand credit-earning and early parole opportunities, and permit incarcerated Californians to seek resentencing under the new, more lenient rules.

Meaningful rehabilitative opportunities and alternatives to incarceration for many of those offenders, however, have been hard to come by. Avoiding harsh sentences has proven easy, but building the housing, mental health and jobs infrastructure to help offenders lawfully thrive on the outside is hard. And it shows. Californians are increasingly worried about crime — 65% of those polled in a Public Policy Institute of California survey said they fear becoming a victim.

In response, some are calling for tougher sentences for particularly egregious crimes. That's an argument many Democratic legislators have taken a principled stand against.

Except when they find it politically inconvenient not to.

Case in point: Tuesday's meeting of the Assembly Public Safety Committee. Democrats on the committee killed a bill authored by Assembly Member Joe Patterson, R-Granite Bay (Placer County), to increase criminal penalties for domestic violence, human trafficking and other sexual crimes, such as rape of an unconscious or incapacitated person. The bill deserved serious consideration — not only because it would amend California penal code to classify domestic violence as the violent crime that it is, but also because it could help the state reduce mass shootings, which research shows are overwhelmingly committed by domestic abusers.

But Assembly Member Reggie Jones-Sawyer, D-Los Angeles, the committee's powerful chairperson, dismissed that idea, telling Patterson, "You're trying to say, 'If we go back to three strikes, we will stop all crime.' We've already proven that doesn't work."

Moments after shooting down Patterson's bill, the committee considered a proposal by Assembly Member Jesse Gabriel, D-Woodland Hills (Los Angeles County), to impose sentence enhancements on people convicted of taking, damaging or destroying property worth more than $275,000.

"It feels like a very slippery slope here when we're talking about enhancements," said Assembly Member Liz Ortega, D-Hayward. "We can't say yes to some and no to others."

And yet that's exactly what Ortega and her Democratic colleagues did. They joined Republicans and unanimously approved Gabriel's bill — and they didn't even try to pretend their reasons weren't political.

"I don't love this," said Assembly Member Isaac Bryan, D-Culver City (Los Angeles County), adding that it "conflicts with multiple different values I hold." Nevertheless, Bryan said, "I trust the author's motives and intent, and … I'm not going to be the reason you get held in the first committee."

Jones-Sawyer said he would let the bill advance despite his misgivings.

"I think part of why people have expressed concern but are willing to let this move forward is because of you," he told Gabriel. "Because they trust you."

The committee's Democrats thus sent a clear message that bills are judged not by their content but by their author — and that some types of victims matter more than others.

Gabriel acknowledged while presenting his bill that "certainly there's a cost for incarceration." But, he added, "there's also a cost to society … when a couple is deprived of their life savings and end up on public benefits, when people are deprived of their place to live and may end up homeless."

But isn't there a cost to society when women and children are subjected to violence? Many domestic violence victims end up homeless, too.

Isn't there a cost to society when people are raped because they are unconscious or too intoxicated to resist? And isn't there a cost to society when domestic abusers remain free to commit mass shootings, as they're statistically wont to do?

On Tuesday, committee Democrats advanced bills to make it easier to modify domestic violence restraining orders to protect victims, establish training programs for judges involved in domestic violence cases and improve state oversight of batterers' intervention programs. That's another reason why their decision to kill Patterson's bill without broader discussion was so disingenuous. Their votes show they recognize that domestic violence is a serious problem that isn't being adequately handled.

If Democrats are going to take righteous stands on criminal justice, they need to show consistency in how they vote. Otherwise, they owe it to voters to allow a wider swath of ideas to be robustly debated. Because their party, which controls a supermajority in the Legislature, has not come close to resolving California's most intractable problems on its own.

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